

**Constitution
of
The Arab Republic of Egypt
2014**

Unofficial translation

The Issuance

of The Amended Constitution of The Arab Republic of Egypt

The Head of the State

Cognizant of the results of the referendum on the draft of the constitutional amendments into the suspended constitution of 2012 that was held on January 14-15, 2014,

And cognizant of Article 247 of the amended constitution of the Arab Republic of Egypt, the amended constitution of the Arab Republic of Egypt is issued with the attached text.

**Cairo on Rabei Awwal 17, 1435;
January 18, 2014;**

Adly Mansour

In the Name of Allah, Most Gracious, Most Merciful

This is Our Constitution, Egypt is the gift of the Nile for Egyptians and the gift of Egyptians to humanity.

With its unique location and history, Egypt is the Arab heart of the world. It is the meeting point of world civilizations and cultures and the crossroads of its maritime transportation and communications. It is the head of Africa on the Mediterranean and the estuary of its greatest river: the Nile.

This is Egypt, an immortal homeland for Egyptians, and a message of peace and love to all peoples.

In the outset of history, the dawn of human conscience arose and shone forth in the hearts of our great ancestors, whose goodwill banded together to found the first central State that regulated and organized the life of Egyptians on the banks of the Nile. It is where they created amazing wonders of civilization, and where their hearts looked up to heavens before earth knew the three Abrahamic religions.

Egypt is the cradle of belief and the banner of glory of the revealed religions.

On its land, Prophet Moses - to whom Allah spoke - grew up and on Mount Sinai, the Revelation of Allah shone on his heart and Divine message descended.

On its land, Egyptians harbored in their bosoms Virgin Mary and her baby and offered thousands of martyrs in defense of the Church of Jesus, Peace Be Upon Him.

When the Seal of the Messengers Mohammad (Peace and Blessings Be Upon Him) was sent to all mankind to perfect the sublime morals, our hearts and minds were opened to the light of Islam, and we, labeled the best soldiers on Earth fighting for the cause of Allah, disseminated the message of truth and sciences of religion across the world.

This is Egypt, a homeland in which we live and in our souls it lives.

In modern age, minds were enlightened, humanity became mature, and nations and peoples progressed on the path of knowledge, raising the banners of freedom and equality. Mohamed Ali founded the modern Egyptian State with a national army as its pillar. Refaa, the Azharian, called for having the homeland "... a place of happiness shared by all its people." We, Egyptians, strived to keep up with the pace of advancement and offered up martyrs and made sacrifices in several uprisings and revolutions until our patriotic army stood up for the overwhelming will of the people in the "Jan 25 – June 30" Revolution that called for freedom, human dignity and social justice for all, and for Egypt to regain its independent will.

This revolution is continuation of national struggle whose brightest symbols were Ahmed Oraby, Mostafa Kamel, and Mohamed Farid, and is a culmination of two great revolutions in our modern history:

The 1919 revolution that had rid Egypt and the Egyptians of the British protection, established the principle of citizenship and equality for all the people. Its leader, Saad Zaghloul, and his successor, Mosfata El-Nahhas, in adopting democracy asserted that “Right is above power and the nation is above government”. During this revolution, Talaat Harb laid down the cornerstone of the national economy.

The July 23, 1952 revolution led by Gamal Abdel Nasser and embraced by the popular will rendered true the dream of generations for independence and evacuation of foreign forces. Egypt affirmed its Arab allegiance, opened up to its African continent and Muslim world, supported liberation movements across continents, and took firm steps on the path of development and social justice.

This revolution is an extension of the revolutionary march of Egyptian patriotism, and enhances the strong bond between the Egyptian people and their national army that assumed the duty and shouldered the responsibility of protecting the homeland, by virtue of which we achieved victory in our greatest battles including driving off the 1956 Tripartite Aggression to defeating our defeat through the glorious victory of October 1973 that gave President Sadat a special place in our recent history.

Compared to major revolutions in the history of mankind, the Jan 25 – June 30 Revolution is unique with its high density of popular participation - estimated to be in the tens of millions - and the prominent role of youth aspiring at a brighter future. It is also unique in that the masses transcended class and ideology divides to reach out to more expansive horizons, the people’s will was defended by their army, and that it had the blessings of Al-Azhar and the Egyptian church. This Revolution is further unique because of its peacefulness and ambition to achieve freedom and social justice combined.

This revolution is both a sign and a good omen; a sign of a past that is still present and a good omen of a future at which all humanity aspires.

The world is about to turn the last few leaves of this era that has been torn up by conflicts of interest between the East and the West, and the North and the South; an era where disputes and wars erupted between classes and peoples, where dangers grew threatening the existence of mankind and life on Earth which Allah entrusted us to preserve. As humanity hopes to move from the age of maturity to the age of wisdom to build a new world where truth and justice prevail, and where freedoms and human rights are protected, we, Egyptians, believe that our revolution is a resumption of our contribution to drafting a new history for humanity.

We believe that we are capable of using the past as an inspiration, stirring up the present, and making our way to the future. We are capable of raising this homeland and rising with it.

We believe that every citizen is entitled to live in this homeland safe and secure, and that every citizen has the right to live at present and in the future.

We believe in democracy as a path, a future, and mode of living, political pluralism and the peaceful rotation of power. We affirm the right of the people to make and determine their future. The Egyptian people, is the sole source of authority. Freedom, human dignity, and social justice are the rights of every citizen. We and our future generations are masters in a sovereign homeland that is master of its destiny.

We are now drafting a Constitution that embodies the dream of generations for a prosperous consolidated society and a just State that realizes the present and future ambitions for the individual and the community.

We are now drafting a Constitution that seeks the completion of building a modern democratic State having a civil government.

We are drafting a Constitution that prevents any corruption or tyranny and by which we heal the wounds of the past, from the days of the old Eloquent Peasant to the victims of negligence and the martyrs of the revolution in our present time, and relieve our people who have – for long – been suffering injustice.

We are drafting a Constitution that affirms that the principles of Islamic Sharia are the principal source of legislation, and that the reference for the interpretation of such principles lies in the body of the relevant Supreme Constitutional Court Rulings.¹

We are drafting a Constitution that paves the way to the future for us, and which is consistent with the Universal Declaration of Human Rights which we participated in drafting and adopted..

We are drafting a Constitution that maintains our freedom and protects our nation against any peril that threatens it or our national unity.

We are drafting a Constitution that holds all of us equal in rights and duties without discrimination of any kind.

We the citizens, women and men, the Egyptian people, sovereigns in a sovereign homeland, this is the manifestation of our volition, this is the Constitution of our revolution.

This is our Constitution.

¹ The rulings are to be deposited in the minutes.

Part I

The State

Article (1)

The Arab Republic of Egypt is a sovereign, united, indivisible State, where no part may be given up, having a democratic republican system that is based on citizenship and rule of law.

The Egyptian people are part of the Arab nation seeking to enhance its integration and unity. Egypt is part of the Islamic world, belongs to the African continent, cherishes its Asian dimension, and contributes to building human civilization.

Article (2)

Islam is the religion of the State and Arabic is its official language. The principles of Islamic Sharia are the main source of legislation.

Article (3)

The principles of Christian and Jewish Sharia of Egyptian Christians and Jews are the main source of legislations that regulate their respective personal status, religious affairs, and selection of spiritual leaders.

Article (4)

Sovereignty belongs only to the people, who shall exercise and protect it. The people are the source of powers, and safeguard their national unity that is based on the principles of equality, justice and equal opportunities among all citizens, as stated in the Constitution.

Article (5)

The political system is based on political and partisan pluralism, peaceful rotation of power, separation and balance of powers, the inevitable correlation between powers and responsibilities, and respect for human rights and freedoms, as stated in the Constitution.

Article (6)

Nationality is a right to anyone born to an Egyptian father or an Egyptian mother, and legal recognition through official papers proving his/her personal data, is a right guaranteed and regulated by Law.

Requirements for acquiring nationality shall be specified by law.

Part II

Basic Components of the Society

Chapter One

Social Components

Article (7)

Al-Azhar is an independent Islamic scientific institution, with exclusive competence over its own affairs. It is the main reference for religious sciences and Islamic affairs. It is responsible for calling to Islam, as well as, disseminating religious sciences and the Arabic language in Egypt and all over the world.

The State shall provide sufficient financial allocations thereto so that it can achieve its purposes.

Al-Azhar's Grand Sheikh is independent and may not be dismissed. The Law shall regulate the method of appointing the Grand Sheikh from amongst the members of Council of Senior Scholars.

Article (8)

Society is based on social solidarity.

The State shall achieve social justice and provide the means to achieve social interdependence, in order to ensure a decent life for all citizens, as regulated by Law.

Article (9)

The State shall ensure equal opportunities for all citizens without discrimination.

Article (10)

The family is the nucleus of society, and is founded on religion, morality, and patriotism. The State shall ensure its cohesion, stability and the establishment of its values.

Article (11)

The State shall ensure the achievement of equality between women and men in all civil, political, economic, social, and cultural rights in accordance with the provisions of this Constitution.

The State shall take the necessary measures to ensure the appropriate representation of women in the houses of representatives, as specified by Law. The State shall also guarantee women's right

of holding public and senior management offices in the State and their appointment in judicial bodies and authorities without discrimination.

The State shall protect women against all forms of violence and ensure enabling women to strike a balance between family duties and work requirements.

The State shall provide care to and protection of motherhood and childhood, female heads of families, and elderly and neediest women.

Article (12)

Work is a right, duty and honor guaranteed by the State. No citizen may be forced to work except as required by Law and for the purpose of performing a public service for a fixed period in return for a fair consideration, and without prejudice to the basic rights of those obliged to carry out such work.

Article (13)

The State shall protect workers' rights and strive to build balanced work relationships between both parties to the production process. It shall ensure means for collective negotiations, protect workers against work risks, guarantee the fulfillment of the requirements of security, safety and occupational health, and prohibit unfair dismissal, all as regulated by Law.

Article (14)

Public offices are a competence-based right for all citizens without bias or favoritism, and are deemed a mandate to serve the people. The State shall ensure the rights and protection of public servants and that they perform their respective duties in serving the interests of the people. They may not be dismissed without disciplinary procedures except in the cases specified by Law.

Article (15)

Peaceful strike is a right regulated by Law.

Article (16)

The State shall honor the martyrs of the nation; shall care for revolution-wounded persons, veterans and wounded warriors, families of those missing in war and its equivalents, and persons wounded in security operations, as well as their wives, children and parents; and shall strive to provide all of them with job opportunities, all as regulated by Law.

The State shall encourage the participation of the civil society organizations in achieving those objectives.

Article (17)

The State shall ensure that social insurance services are provided.

All citizens who do not benefit from the social insurance system have the right to social security, in a manner that ensures a decent life in the event of being incapable to provide for themselves and their families, as well as in cases of incapacity to work, old age or unemployment.

In accordance with Law, the State shall strive to provide suitable pensions to small farmers, agricultural workers and fishermen, and irregular labor.

The funds of social insurance and pensions are deemed private funds that enjoy all aspects and forms of protection afforded to public funds. Those funds along with their returns are the rights of their respective beneficiaries; they shall be safely invested, and shall be managed by an independent entity in accordance with the Law.

The State shall guarantee social insurance and pension funds.

Article (18)

Every citizen has the right to health and to comprehensive health care which complies with quality standards. The State shall maintain and support public health facilities that provide health services to the people, and shall enhance their efficiency and their equitable geographical distribution.

The State shall allocate a percentage of government spending to health equivalent to at least 3% of Gross National Product (GNP), which shall gradually increase to comply with international standards.

The State shall establish a comprehensive health insurance system covering all diseases for all Egyptians; and the Law shall regulate citizens' contribution to or exemption from its subscriptions based on their income rates.

Refusing to provide any form of medical treatment to any human in emergency or life-threatening situations is a crime.

The State shall improve the conditions of physicians, nursing staff, and health sector workers.

All health facilities as well as health-related products, materials and means of advertisement shall be subject to State control. The State shall encourage the participation of private and non-governmental sectors in providing health care services according to the Law.

Article (19)

Every citizen has the right to education. The goals of education are to build the Egyptian character, preserve the national identity, root the scientific method of thinking, develop talents

and promote innovation, establish cultural and spiritual values, and found the concepts of citizenship, tolerance and non-discrimination. The State shall observe the goals of education in the educational curricula and methods, and provide education in accordance with international quality standards.

Education is compulsory until the end of the secondary stage or its equivalent. The State shall provide free education in the various stages in the State's educational institutions according to the Law.

The State shall allocate a percentage of government spending to education equivalent to at least 4% of the Gross National Product (GNP), which shall gradually increase to comply with international standards.

The State shall supervise education to ensure that all public and private schools and institutes abide by its educational policies.

Article (20)

The State shall encourage and develop technical and technological education as well as vocational training, and expand all their types in accordance with international quality standards and in accordance with labor market needs.

Article (21)

The State shall guarantee the independence of universities and scientific and linguistic academies, and provide university education in accordance with international quality standards. It shall develop and ensure free provision of, university education in State universities and institutes according to the Law.

The State shall allocate a percentage of government spending to university education equivalent to at least 2% of the Gross National Product (GNP), which shall gradually increase to comply with international standards.

The State shall encourage the establishment of non-profit, non-governmental universities. The State shall guarantee the quality of education in private and non-governmental universities, ensure that they comply with international quality standards and the = build their own faculty members and researchers, and allocate a sufficient percentage of their returns to educational and research development.

Article (22)

Teachers, and faculty members and their assistants, are the main pillars of education. The State shall guarantee the development of their academic competencies and professional skills and shall care for their financial and moral rights in order to ensure the quality of education and achieve its goals.

Article (23)

The State shall ensure freedom of scientific research and encourage scientific research institutions as a mean to achieve national sovereignty and build a knowledge economy. The State shall sponsor researchers and inventors and allocate a percentage of government spending to scientific research equivalent to at least 1% of the Gross National Product (GNP), which shall gradually increase to comply with international standards.

The State shall ensure effective means of contribution by private and non-governmental sectors and the participation of Egyptian expatriates in the progress of scientific research.

Article (24)

Arabic Language, Religious Education and National History, in all its stages, are core subjects in public and private pre-university education. Universities shall teach human rights and professional values and ethics of the various academic disciplines.

Article (25)

The State shall develop a comprehensive plan to eradicate alphabetical and digital illiteracy among citizens of all ages. The State shall develop its implementation mechanisms with the participation of civil society organizations within a definite timeline.

Article (26)

The creation of civil titles is prohibited.

Chapter Two

Economic Components

Article (27)

The economic system aims at achieving prosperity through sustainable development and social justice so as to raise the real growth rate of the national economy and the standard of living, increase job opportunities, reduce unemployment rates and eliminate poverty.

The economic system shall adhere to transparency and good governance standards; enhance pillars of competitiveness, encourage investment, ensure balanced geographical, sectorial, and environmental growth, prohibit monopolistic practices, maintain financial and trade balances and a fair tax system, in the context of a regulated economy guaranteeing the various types of ownership and striking a balance between the interests of various stakeholders preserving the rights of workers and protecting consumers.

From a social perspective, the economic system shall ensure equal opportunities and fair distribution of development returns, reduce the differences among incomes and adhere to a

minimum wage and pension ensuring a decent life, as well as a maximum one in State agencies for every salaried employee according to the Law.

Article (28)

The productive, service and information related economic activities are key components of the economy. The State shall protect them and strive to increase their competitiveness; provide investment-attracting environment, increase productivity, encourage exports, and regulate imports.

The State shall pay special attention to small, medium and micro enterprises in all fields, and shall regulate and rehabilitate the informal sector.

Article (29)

Agriculture is a basic component of the economy.

The State shall protect and expand agricultural land, and shall criminalize encroachments thereon. It shall develop rural areas; raise the standard of living of their population and protect them from environmental risks; and shall strive to on develop agricultural and animal production and encourage industries based thereon.

The State shall provide agricultural and animal production requirements, and shall buy basic agricultural crops at suitable prices generating profit margins for farmers in agreement with agricultural unions, syndicates and associations. The State shall also allocate a percentage of reclaimed lands to small farmers and youth graduates, and protect farmers and agricultural workers against exploitation. All the foregoing shall be as regulated by Law.

Article (30)

The State shall protect fish resources, as well as protect and support fishermen and empower them to carry out their work without jeopardizing ecosystems, as regulated by Law.

Article (31)

The security of cyberspace is an integral part of the economic system and national security. The State shall take the necessary measures to preserve it as regulated by Law.

Article (32)

The State's natural resources belong to the people. The State shall preserve and effectively exploit them, may not deplete them, and shall observe the rights of future generations to them.

The State shall make the best use of renewable energy sources, motivate investment therein, and encourage relevant scientific research. The State shall encourage the manufacture of raw materials and increase their added value as per economic feasibility.

Disposing of State's public properties is prohibited. Granting the right of exploitation of natural resources or public utility concessions shall be by virtue of a law for a period not exceeding thirty (30) years.

Granting the right of exploitation of quarries, small mines and slatterns, or granting public utility concession shall be based on a law for a period not exceeding fifteen (15) years.

The Law shall define provisions of disposing of the State's private properties as well as the regulating rules and procedures.

Article (33)

The State shall protect ownership with its three types: the public, the private and the cooperative.

Article (34)

Public properties are inviolable and may not be infringed upon. Protection thereof is a duty according to the Law.

Article (35)

Private properties shall be protected, and the right to inheritance thereto is secured. It is not permissible to impose guardianship thereon except in the cases defined by Law and by virtue of a court judgment. Expropriation shall be allowed only in the public interest and for its benefit, and against fair compensation to be paid in advance according to the Law.

Article (36)

The State shall motivate the private sector to undertake its social responsibility in serving the economy and society.

Article (37)

Cooperative ownership shall be protected. The State shall give due care to cooperatives, and the Law shall guarantee their protection, support and independence.

It is prohibited to dissolve cooperatives or their board of directors except by virtue of a court judgment.

Article (38)

The tax system, as well as other public liabilities, aim at developing State resources and achieving social justice and economic development.

Public taxes may not be created, altered, or cancelled except by a law; and exemption therefrom may only be made in the cases defined by the law. No person may be required to pay other taxes or fees except as provided for in the Law.

Multi sources shall be observed in imposing taxes. Progressive multi bracket taxes shall be imposed on incomes of individuals according to their respective financial capabilities. Taxation system shall ensure promoting labor-intensive economic activities and motivating their role in the economic, social and cultural development.

The State shall improve the taxation system and develop modern systems that guarantee efficiency, easiness and control in tax collection. The Law shall define the methods and tools of collecting taxes, charges and any other sovereign proceeds, and amounts thereof to be deposited into the State public treasury.

Tax payment is a duty and tax evasion is a crime.

Article (39)

Saving is a national duty protected and encouraged by the State that shall guarantee savings, as regulated by the law.

Article (40)

General confiscation of properties is prohibited.

Specific confiscation is impermissible except by virtue of a court judgment.

Article (41)

The State shall implement a population program aiming at striking a balance between population growth rates and available resources; and shall maximize investments in human resources and improve their characteristics in the framework of achieving sustainable development.

Article (42)

Workers shall have a share in the management and profits of enterprises according to the law, and shall develop production and implement the respective plans of their productive units. Preserving production tools is a national duty.

Workers shall be represented by 50% of the elected members of the boards of directors of public sector units. Their representation in the boards of directors of public enterprise sector companies shall be subject to the Law.

The Law shall regulate the representation of small farmers and craftsmen with a minimum representation percentage of 80% in the boards of directors of agricultural, industrial and handicraft cooperatives.

Article (43)

The State shall protect and develop the Suez Canal and preserve it as an international waterway owned by the State. The State shall also develop the Canal sector as a distinguished economic center.

Article (44)

The State shall protect the River Nile, preserve Egypt's historical rights thereto, rationalize and maximize its use, and refrain from wasting or polluting its water. The State shall also protect groundwater; adopt necessary means for ensuring water security; and support scientific research in that regard.

Every citizen is guaranteed the right to enjoy the River Nile. It is prohibited to trespass the riverbank reserve or harm the riverine environment. The State shall guarantee eliminating any trespass against the River Nile as regulated by Law.

Article (45)

The State shall protect its seas, shores, lakes, waterways and natural protectorates.

Trespassing, polluting or misusing any of them is prohibited. Every citizen is guaranteed the right of enjoying them. The State shall protect and develop the green space in the urban areas; preserve plant, animal and fish resources and protect those under the threat of extinction or danger; guarantee humane treatment of animals, all according to the law.

Article (46)

Every person has the right to a sound healthy environment. Environment protection is a national duty. The State shall take necessary measures to protect and ensure not to harm the environment; ensure a rational use of natural resources so as to achieve sustainable development; and guarantee the right of future generations thereto.

Chapter Three

Cultural Components

Article (47)

The State shall maintain the Egyptian cultural identity with its diversified branches of civilization.

Article (48)

Culture is a right to every citizen. The State shall secure and support this right and make available all types of cultural materials to all strata of the people, without any discrimination

based on financial capability, geographic location or others. The State shall give special attention to remote areas and the neediest groups.

The State shall encourage translation from and into Arabic.

Article (49)

The State shall protect and preserve monuments and give due care to monumental sites. It shall also maintain and restore them; recover stolen antiquities; and organize and supervise excavation operations.

Presenting monuments as gifts or exchanging them is prohibited.

Aggression against or trafficking in monuments is a crime that is not subject to prescription.

Article (50)

Egypt's civilization and cultural heritage, whether physical or moral, including all diversities and principal milestones – namely Ancient Egyptian, Coptic, and Islamic – is a national and human wealth. The State shall preserve and maintain this heritage as well as the contemporary cultural wealth, whether architectural, literary or artistic, with all diversities. Aggression against any of the foregoing is a crime punished by Law. The State shall pay special attention to protecting components of cultural pluralism in Egypt.

Part III

Public Rights, Freedoms & Duties

Article (51)

Dignity is the right of every human being and may not be violated. The State shall respect and protect human dignity.

Article (52)

Torture in all forms and types is a crime that is not subject to prescription.

Article (53)

All citizens are equal before the Law. They are equal in rights, freedoms and general duties, without discrimination based on religion, belief, sex, origin, race, color, language, disability, social class, political or geographic affiliation or any other reason.

Discrimination and incitement of hatred is a crime punished by Law.

The State shall take necessary measures for eliminating all forms of discrimination, and the Law shall regulate creating an independent commission for this purpose.

Article (54)

Personal freedom is a natural right, shall be protected and may not be infringed upon. Except for the case of being caught in *flagrante delicto*, it is not permissible to arrest, search, detain, or restrict the freedom of anyone in any way except by virtue of a reasoned judicial order that was required in the context of an investigation.

Every person whose freedom is restricted shall be immediately notified of the reasons therefore; shall be informed of his/her rights in writing; shall be immediately enabled to contact his/her relatives and lawyer; and shall be brought before the investigation authority within twenty four (24) hours as of the time of restricting his/her freedom.

Investigation may not start with the person unless his/her lawyer is present. A lawyer shall be seconded for persons who do not have one. Necessary assistance shall be rendered to people with disability according to procedures prescribed by Law.

Every person whose freedom is restricted, as well as others, shall have the right to file grievance before the court against this action. A decision shall be made on such grievance within one (1) week as of the date of action; otherwise, the person must be immediately released.

The Law shall regulate the provisions, duration, and causes of temporary detention, as well as the cases in which damages are due on the state to compensate a person for such temporary detention or for serving punishment thereafter cancelled pursuant to a final judgment reversing the judgment by virtue of which such punishment was imposed.

In all events, it is not permissible to present an accused for trial in crimes that may be punishable by imprisonment unless a lawyer is present by virtue of a power of attorney from the accused or by secondment by the court.

Article (55)

Every person who is either arrested, detained, or his freedom is restricted shall be treated in a manner that maintains his dignity. He/she may not be tortured, intimidated, coerced, or physically or morally harmed; and may not be seized or detained except in places designated for that purpose, which shall be adequate on human and health levels. The State shall cater for the needs of people with disability.

Violating any of the aforementioned is a crime punished by Law.

An accused has the right to remain silent. Every statement proved to be made by a detainee under any of the foregoing actions, or threat thereof, shall be disregarded and not be relied upon.

Article (56)

A prison is a place of correction and rehabilitation.

Prisons and places of detention shall be subject to judiciary supervision, where actions inconsistent with human dignity or which endanger human health shall be prohibited.

The Law shall regulate the provisions of reform and rehabilitation of convicted persons and facilitating decent lives after their release.

Article (57)

The right to privacy may not be violated, shall be protected and may not be infringed upon..

Postal, telegraphic and electronic correspondences, telephone calls, and other means of communication are inviolable, and their confidentiality is guaranteed. They may not be confiscated, revealed or monitored except by virtue of a reasoned judicial order, for a definite period, and only in the cases defined by Law.

The State shall protect citizens' right to use all forms of public means of communications. Interrupting or disconnecting them, or depriving the citizens from using them, arbitrarily, is impermissible. This shall be regulated by Law.

Article (58)

Privacy of homes is inviolable. Except for cases of danger or call for help, homes may not be entered, inspected, monitored or eavesdropped except by a reasoned judicial warrant specifying the place, the time and the purpose thereof. This is to be applied only in the cases and in the manner prescribed by Law. Upon entering or inspection, the residents of houses must be apprised and have access to the warrant issued in this regard.

Article (59)

Everyone has the right to a safe life. The State shall provide security and reassurance for its citizens and all those residing in its territory.

Article (60)

The human body is inviolable and any assault, deformation or mutilation committed against it shall be a crime punishable by Law. Organs trade shall be prohibited, and it is not permissible to perform any medical or scientific experiment thereon without a certified free consent according to established principles in medical sciences and as regulated by Law.

Article (61)

Tissue and organ donation is a gift for life. Every person shall have the right to donate his body organs either during his lifetime or after his death by virtue of consent or a certified will. The State shall develop a mechanism regulating the rules of organ donation and transplantation in accordance with the Law.

Article (62)

Freedom of movement, residence and emigration shall be guaranteed.

No citizen may be expelled from the State territory or prevented from returning thereto.

No citizen may be prevented from leaving the State territory, placed under house arrest or prevented from residing in a certain place except by a reasoned judicial order for a specified period of time and in the cases as defined by the Law.

Article (63)

All forms and types of arbitrary forced displacement of citizens shall be prohibited and shall be a crime that does not lapse by prescription.

Article (64)

Freedom of belief is absolute.

The freedom of practicing religious rituals and establishing worship places for the followers of Abrahamic religions is a right regulated by Law.

Article (65)

Freedom of thought and opinion is guaranteed.

Every person shall have the right to express his/her opinion verbally, in writing, through imagery, or by any other means of expression and publication.

Article (66)

Freedom of scientific research is guaranteed. The State is committed to sponsor researchers and inventors and to provide protection for and endeavor to apply their innovations.

Article (67)

Freedom of artistic and literary creativity is guaranteed. The State shall encourage arts and literature, sponsor creative artists and writers and protect their productions, and provide the means necessary for achieving this end.

No lawsuit may be initiated or filed to stop or confiscate any artistic, literary, or intellectual works, or against their creators except by the Public Prosecutor. No freedom restricting sanction may be inflicted for crimes committed because of the publicity of artistic, literary or intellectual product. As for crimes related to the incitement of violence, discrimination between citizens, or impingement of individual honor, the Law shall specify the penalties therefore.

In such cases, the court may obligate the sentenced to pay punitive compensation to the victim of the crime, in addition to the original compensations due to the victim for the damages incurred. All the foregoing shall be in accordance with the Law.

Article (68)

Information, data, statistics and official documents are the property of the People and the disclosure thereof from their various sources is a right guaranteed by the State for all citizens. The State is committed to provide and make them available to citizens in a transparent manner. The Law shall regulate the rules for obtaining them and terms for their availability and confidentiality; the rules for their deposit and storage; and the rules for and filing complaints against the refusal to provide them. The Law shall also impose penalties for withholding information or deliberately providing wrong information.

The State institutions shall deposit official documents with the National Library and Archives once they are no longer in use. The State institutions shall also protect, and secure such documents against loss or damage, as well as restoring and digitizing them using all modern means and instruments according to the Law.

Article (69)

The State shall protect all types of intellectual property rights in all fields, and establish a specialized agency to uphold such rights and their legal protection as regulated by Law.

Article (70)

Freedom of the press, printing and paper, visual, audio and electronic publication is guaranteed. Every Egyptian - whether being natural or legal, public or private person – shall have the right to own and issue newspapers and establish visual, audio and digital media outlets.

Newspapers may be issued once notification is given as regulated by Law. The Law shall regulate the procedures of establishing and owning visual and radio broadcast stations and online newspapers.

Article (71)

It is prohibited to censor, confiscate, suspend or shut down Egyptian newspapers and media outlets in any way. By way of exception, they may be subject to limited censorship in times of war or general mobilization.

No freedom restricting penalty shall be imposed for publication or publicity crimes. As for crimes related to the incitement of violence, discrimination between citizens, or impingement of individual honor, the Law shall stipulate the penalties therefor.

Article (72)

The State shall ensure the independence of all State-owned press institutions and media outlets, in a manner ensuring their neutrality and presentation of all political and intellectual opinions and trends as well as social interests and also guaranteeing equality and equal opportunities in addressing public opinion.

Article (73)

Citizens shall have the right to organize public meetings, marches, demonstrations and all forms of peaceful protests, without carrying arms of any kind, by serving a notification as regulated by Law.

The right to peaceful and private assembly is guaranteed without need for prior notification. Security forces may not attend, monitor or eavesdrop on such meetings.

Article (74)

All citizens shall have the right to form political parties by notification as regulated by Law. No political activity may be practiced and no political parties may be formed on the basis of religion or discrimination based on sex, or origin, or on sectarian basis or geographic location. No activity that is hostile to democratic principles, secretive, or of military or quasi-military nature may be practiced.

Political parties may not be dissolved except by virtue of a court judgment.

Article (75)

All citizens shall have the right to form non-governmental associations and foundations on democratic basis, which shall acquire legal personality upon notification.

Such associations and foundations shall have the right to practice their activities freely, and administrative agencies may not interfere in their affairs or dissolve them, or dissolve their boards of directors or boards of trustees save by a court judgment.

The establishment or continuation of non-governmental associations and foundations, whose statutes or activities are secretive or conducted in secret or which are of military or quasi-military nature is prohibited as regulated by Law.

Article (76)

The establishment of syndicates and federations on democratic basis is a right guaranteed by Law. Syndicates and federations shall acquire legal personality, shall have the right to practice their activities freely, shall improve the level of efficiency among their members and defend their rights and interests.

The State shall guarantee the independence of all syndicates and federations and their boards of directors may only be dissolved by a court judgment.

No syndicate or federation may be established in the military or police agencies.

Article (77)

The Law shall regulate the establishment of professional syndicates and the administration thereof on a democratic basis, shall guarantee their independence and shall specify their resources and the manner of recording their members, and holding them accountable for their conduct in practicing their professional activities according to the codes of ethics and professional conduct.

No profession may have more than one syndicate for the regulation of its affairs. Receivership may not be imposed on any syndicate. Administrative bodies may not interfere in the affairs

thereof. The board of directors of any syndicate may not be dissolved save by a court judgment. The opinion of the syndicate shall be sought on draft legislations pertaining to it.

Article (78)

The State shall ensure the citizens' right to adequate, safe and healthy housing in a manner which preserves human dignity and achieves social justice.

The State shall devise a national housing plan which upholds the environmental particularity and ensures the contribution of personal and collaborative initiatives in its implementation. The State shall also regulate the use of State lands and provide them with basic utilities within the framework of comprehensive urban planning which serves cities and villages and a population distribution strategy. This is to be applied in a manner serving the public interest, improving the quality of life for citizens and safeguards the rights of future generations.

The State shall also devise a comprehensive national plan to address the problem of unplanned slums, which includes re-planning, provision of infrastructure and utilities, and improvement of the quality of life and public health. In addition, the State shall guarantee the provision of resources necessary for implementing such plan within a specified period of time.

Article (79)

Each citizen has the right to healthy and sufficient food and clean water. The State shall ensure food resources to all citizens. The State shall also ensure sustainable food sovereignty and maintain agricultural biological diversity and types of local plants in order to safeguard the rights of future generations.

Article (80)

Anyone under the age of 18 shall be considered a child. Each child shall have the right to a name, identity documents, free compulsory vaccination, health and family or alternative care, basic nutrition, safe shelter, religious education, and emotional and cognitive development.

The State shall ensure the rights of children with disabilities, their rehabilitation and their integration in the society.

The State shall provide children with care and protection from all forms of violence, abuse, mistreatment and commercial and sexual exploitation.

Every child shall be entitled to acquire early education in a childhood center until the age of six. It is prohibited to employ children before the age of completing their preparatory education (six years of primary and three years of preparatory) or in jobs which subject them to danger.

The State shall also develop a judicial system for children that have been victims and or are witnesses. Children may not be held criminally accountable or detained save as provided in the

Law and for the period of time specified therein. In such a case, they shall be provided with legal assistance and detained in appropriate locations separate from those allocated for the detention of adults.

The State shall endeavor to achieve the best interest of children in all measures taken against them.

Article (81)

The State shall guarantee the health, economic, social, cultural, entertainment, sporting and educational rights of persons with disabilities and dwarves, strive to provide them with job opportunities, allocate a percentage of job opportunities to them, and adapt public facilities and their surrounding environment to their special needs. The State shall also ensure their exercise of all political rights and integration with other citizens in compliance with the principles of equality, justice and equal opportunities.

Article (82)

The State shall guarantee the provision of care to the youth and youngsters shall endeavour to discover their talents; develop their cultural, scientific, psychological, physical and creative abilities, encourage their engagement in group and volunteer activities and enable them to participate in public life.

Article (83)

The State shall guarantee the health, economic, social, cultural and entertainment rights of the elderly people, provide them with appropriate pensions which ensure a decent life for them, and enable them to participate in public life. In its planning of public facilities, the State shall take into account the needs of the elderly. The State shall encourage civil society organizations to participate in taking care of the elderly people.

All the foregoing is to be applied as regulated by Law.

Article (84)

Everyone has the right to exercise sports. The State institutions and civil society shall endeavor to discover and sponsor the talented athletes and take the necessary measures to encourage the exercise of sports.

The Law shall regulate the affairs of sports and non-governmental sporting agencies in accordance with international standards and shall regulate the manner of settling sporting disputes.

Article (85)

Every individual shall have the right to address public authorities in writing and under his own signature. Public authorities may not be addressed in the name of any groups except for any entity having a legal personality e.

Article (86)

Protecting national security is a duty. The responsibility of all parties to uphold national security is guaranteed by the Law.. . Defending the nation and the protection of its land are an honor and a sacred duty. Military service is mandatory according to the Law.

Article (87)

Participation of citizens in the public life is a national duty. Every citizen shall have the right to vote, run for elections, and express his/her opinion in referendums. The Law shall regulate the exercise of these rights. There may be exemption from the performance of this duty in certain cases to be specified by Law.

The State shall be responsible for entering the name of each citizen in the voters database without request therefrom provided he/she satisfies the conditions for voting. The State shall also purge this database on a periodic basis in pursuance of the Law. The State shall guarantee the safety, neutrality and integrity of referendum and election procedures. It is prohibited to use public funds, government agencies, public facilities, worship places, business sector institutions and non-governmental organizations and institutions for political purposes or election publicity.

Article (88)

The State shall safeguard the interests of Egyptians living abroad, protect them and protect their rights and freedoms, enable them to perform their public duties towards the State and society, and encourage their contribution to the development of the nation.

The Law shall regulate the participation of Egyptians living abroad in elections and referendums in a manner consistent with their particular circumstances, without being restricted by the provisions of voting, counting of ballots and announcing of results, set forth in this Constitution. This is without prejudice to providing guarantees to ensure the integrity and neutrality of the election and referendum process.

Article (89)

All forms of slavery, oppression, forced exploitation of human beings, sex trade, and other forms of human trafficking are prohibited and criminalized by Law.

Article (90)

The State shall encourage the charitable endowment system for the establishing and sponsoring of scientific, cultural, health, social institutions and others, and shall ensure the independence thereof. The affairs of such institutions shall be managed in accordance with the conditions set by the person who created the endowment, as regulated by Law.

Article (91)

The State may grant political asylum to any foreigner persecuted for defending the interests of people, human rights, peace or justice.

Extradition of political refugees is prohibited. All of the foregoing shall be according to the Law.

Article (92)

Inalienable rights and freedoms of citizens may not be suspended or reduced.

No law regulating the exercise of rights and freedoms may restrict such rights and freedoms in a manner prejudicing the substance and the essence thereof.

Article (93)

The State shall be bound by the international human rights agreements, covenants and conventions ratified by Egypt, and which shall have the force of law after publication in accordance with the prescribed conditions.

Part IV

Rule of Law

Article (94)

The rule of law shall be the basis of governing in the State.

The State shall be governed by Law. The independence, immunity and impartiality of the judiciary are essential guarantees for the protection of rights and freedoms.

Article (95)

Penalties are personal. There shall be no crime or punishment except pursuant to a law, and a penalty may only be inflicted by a court judgment. Penalty shall only be imposed for acts committed after the effective date of the law imposing it.

Article (96)

The accused person is presumed innocent until proven guilty in a fair legal trial in which the right to defend himself is guaranteed.

The law shall regulate the appeal of judgments passed on felonies.

The State shall provide protection to victims, witnesses, accused and informants as necessary and in accordance with the Law.

Article (97)

Litigation is a right that is safeguarded and an inalienable right for all. The State shall guarantee the accessibility of judicature for litigants and rapid adjudication on cases. It is prohibited to immunize any administrative act or decision from judicial review. No person may be tried except before the ordinary judge. Exceptional courts are prohibited.

Article (98)

The right of defense either in person or by proxy is guaranteed. The independence of the legal profession and the protection of its rights is a guarantee for the right of defense.

The law shall provide all means by which those who are financially unable can resort to justice and defend their rights.

Article (99)

Any violation of personal freedom, or the sanctity of the private life of citizens, or any other public rights and freedoms which are guaranteed by the Constitution and the Law is a crime. The criminal and civil lawsuit arising of such crime shall not abate by prescription. The affected party shall have the right to bring a direct criminal action.

The State shall guarantee fair compensation for the victims of such violations. The National Council for Human Rights may file a complaint with the Public Prosecution of any violation of these rights, and it may intervene in the civil lawsuit in favor of the affected party at its request. All of the foregoing is to be applied in the manner set forth by Law.

Article (100)

Court judgments shall be issued and enforced in the name of the People. The State shall guarantee the means of the enforcement thereof as regulated by Law. Refraining from or delay in the enforcement of such judgments by the competent public servants is a crime punishable by Law. In such a case, the party in favor of whom the judgment is passed shall have the right to bring a direct criminal action before the competent court.. The Public Prosecution shall, at the request of the party in favor of whom the judgment is passed, initiate criminal action against the public servant refraining from executing the judgment or interrupting such execution.

Part V

The System of Government

Chapter One

The Legislative Power

(House of Representatives)

Article (101)

In the manner stated in the Constitution, the House of Representatives is entrusted with the authority to enact legislations and approve the general policy of the State, the general plan of economic and social development and the State budget. It exercises oversight over the actions of the executive power.

Article (102)

The House of Representatives is composed of no less than four hundred and fifty members elected by direct secret public ballot.

A candidate for the membership of the House must be an Egyptian citizen, enjoying civil and political rights, a holder of at least the certificate of basic education, and should not be below 25 Gregorian years of age on the day of opening candidacy registration.

Other candidacy requirements, the electoral system, and division of electoral constituencies shall be defined by law in a manner which observes fair representation of the population and governorates and equitable representation of voters. Elections based on the plurality voting system or proportional list, or a combination of both at whatsoever ratio may be adopted.

The President of the Republic may appoint no greater than 5% of the members, the method of nomination thereof shall be stipulated by Law.

Article (103)

A member of the House of Representatives shall devote him/herself on a full time basis for the tasks of membership and his/her post shall be reserved for him/her in accordance with the Law.

Article (104)

As a condition for undertaking his/her duties, a House of Representatives member shall take the following oath: "I swear by The Almighty God to loyally uphold the republican system, respect

the Constitution and the Law, fully uphold the interests of the People, and to safeguard the independence of the nation and the integrity and safety of .”

Article (105)

A House of Representatives member shall receive a remuneration determined by Law. In case the remuneration is changed, such change will only come into force at the commencement of the legislative term following the one during which the change was adopted.

Article (106)

The term of membership in the House of Representatives is five calendar years, commencing from the date of its first session.

Elections for a new House of Representatives shall be held during the sixty days preceding the end of the term of previous House.

Article (107)

The Court of Cassation shall have jurisdiction over the validity of membership in the House of Representatives. Appeals shall be submitted to the Court of Cassation within a period not exceeding thirty days from date on which the final election results are announced. Appeals shall be adjudicated within sixty days from the date of the receipt thereof.

In the event that a judgment declares a membership invalid, the invalidity of the membership shall be effective as of the date on which the court judgment is notified to the House.

Article (108)

In case a seat of a House of Representatives becomes vacant at least six months prior to the expiry of his tenure, the vacant position must be filled in accordance with Law within sixty days from the date on which the House reports the vacancy.

Article (109)

Throughout its membership tenure, no House of Representatives member may, whether in person or by proxy, buy, rent or lease any asset owned by the State or a public-law legal persons or a public sector company or a public enterprise sector company; sell to or barter with the state any part of its own property or conclude a contract with the State as a vendor, supplier, contractor or otherwise as set out by Law. Any of such acts shall be void.

A member must submit a financial estate disclosure upon taking membership and at the end of membership and at the end of each year of membership.

In case a House of Representatives member receives cash or in-kind gift because of or in connection with his/her membership, title thereto shall devolve to the State public treasury.

All the foregoing shall be as regulated by Law.

Article (110)

Membership in the House of Representatives may only be dropped or cancelled if a member has lost confidence and esteem or ceases to satisfy any membership condition based on which he was elected or if he has violated the duties of membership.

The decision of cancellation must be issued by a majority of two-thirds of the members of the House of Representatives.

Article (111)

The House of Representatives shall accept resignation of its members, which must be submitted in writing. To be accepted, a resignation must not be submitted after the House has initiated procedures for cancelling the membership of the resigning member.

Article (112)

A House of Representatives member shall not be held accountable for any opinions expressed concerning the performance of his duty in the House or its committees.

Article (113)

Except in cases of *flagrante delicto*, it shall be prohibited to take any criminal action, under the Articles of felonies and misdemeanors, against a House of Representatives member without the prior permission from the House. In case the House of Representatives is not in session, a permission must be obtained from the House's Bureau, and the House must be notified at its first session.

In all cases, a decision should be taken on any motion for permission to take legal action against a House of Representatives member within thirty days; otherwise, the motion shall be deemed accepted.

Article (114)

The seat of the House of Representatives shall be in Cairo.

However, in exceptional circumstances, the House may hold its sessions elsewhere, at the request of the President of the Republic or one-third of the members of the House of Representatives.

Any meetings held otherwise and any resolutions passed thereby shall be void.

Article (115)

The President of the Republic shall invite the House of Representatives for its annual ordinary session before the first Thursday of October; failing such invitation, the House is required by the Constitution to meet on the stated day.

The ordinary session shall continue for at least nine months. The President of the Republic shall bring each session to close with the approval of the House. This shall not be permissible except after State's General Budget has been approved.

Article (116)

At the President of the Republic's request or upon a motion signed by at least one tenth of the House members, the House of Representatives may hold an extraordinary meeting to consider an urgent issue.

Article (117)

At the first meeting of its annual regular session, the House of Representatives shall elect, from among its members, a speaker and two deputies for the full legislative term. If the office of any of the aforementioned persons becomes vacant, a substitute shall be elected by the House. The House's internal regulations shall provide for the rules and procedures of election. If any of the aforementioned persons fails to fulfill the duties of his office, one-third of the House members may request to relieve him of his office. The relevant decision shall be issued by a majority of two-thirds of the members.

In all cases, neither the Speaker nor any of the two deputies may be elected for more than two consecutive legislative terms.

Article (118)

The House of Representatives shall set its own internal regulations of its work and the manner of exercising its authorities and maintaining order therein. Such internal regulations shall be issued by a law.

Article (119)

The House of Representatives shall be competent to maintain order therein and this duty shall be incumbent upon the Speaker of the House.

Article (120)

The sessions of the House of Representatives shall be held in public.

The House may hold a secret session at the request of the President of the Republic, the Prime Minister, the Speaker of the House, or at least twenty of the House members. By the majority of

its members, the House shall decide whether the discussion in question is to be conducted in a public or a secret session.

Article (121)

The meetings of the House and resolutions passed thereby shall not be deemed valid unless attended by the majority of its members.

In cases other than those requiring a special majority, resolutions shall be passed by the absolute majority of the members present. In case there is a tie of votes, the subject matter in deliberation shall be deemed rejected.

Laws shall be issued by the absolute majority of the members present, provided that such majority constitutes not less than one third of the House members.

The Laws deemed complementary to the Constitution shall be issued by a majority of two thirds of the House members. Laws regulating presidential or parliamentary or municipal elections, political parties, the judiciary, related to judicial bodies and judicial organizations, and those regulating the rights and freedoms stipulated in the Constitution shall be deemed complementary to the Constitution.

Article (122)

The President of the Republic, the Cabinet, and every House member shall have the right to propose laws.

Every bill presented by the government or one tenth of the House members shall be referred to the competent specialized committees of the House for review and submission of a report to the House. A committee may seek the opinion of experts on the matter in question.

No bill presented by a member can be referred to the specialized committee unless it has been permitted by the committee responsible for proposals and approved by the House. If the committee responsible for proposals rejects a bill, it must provide a reasoned decision.

Any bill or proposed law rejected by the House may not be re-presented during the same legislative term.

(Article 123)

The President of the Republic has the right to issue laws or reject them.

If the President of the Republic objects to a draft law approved by the House of Representatives, he/she shall refer it back to the House of Representatives within thirty (30) days as of the date when the House of Representatives notified the President of such approval. If the President does

not refer the draft law back to the House of Representatives within this period, the draft law shall be deemed a Law and shall be issued.

If the draft law is referred back to the House of Representatives within the aforementioned period and approved again by a majority of two-thirds of its members, it shall be deemed a Law and shall be issued.

Article (124)

The State budget shall include all of its revenues and expenditures without exception. The draft budget shall be submitted to the House of Representatives at least ninety (90) days before the beginning of the fiscal year; and shall not be effective unless approved thereby. Voting thereon shall be made on a section-by-section basis.

The House of Representatives may alter the expenditures stated in the draft budget, except for those allocated to honor a specific State liability.

Should such alteration result in an increase in total expenditures, the House of Representatives must reach an agreement with the Government on the means to procure sources of revenue so as to restore a balance between both. The State budget shall be issued by a law which may include an amendment of another existing law to the extent necessary to achieve such balance.

In all cases, the budget law may not include any provision that puts new burdens on citizens.

The Law shall specify the fiscal year, the method of preparing the State budget, and the provisions of the budgets of public bodies and organizations and their accounts.

The House of Representatives must approve the transfer of any funds from one section of the State budget to another, as well as any expenditure not included therein or in excess of its estimate. Such approval shall be issued by a law.

Article (125)

The final accounts of the State budget must be submitted to the House of Representatives within a period not exceeding six (6) months as of the end of the fiscal year. The annual report of the Central Auditing Organization (CAO) and the latter's notes on the final accounts shall be submitted therewith.

The final accounts shall be put to vote on a section-by-section basis and shall be issued by a law.

The House of Representatives has the right to ask CAO for any additional data or reports.

Article (126)

The Law shall regulate the basic rules for the collection of public funds and the procedures for their disbursement.

Article (127)

The executive power may not obtain a loan or funding or engage in a project that is not listed in the approved State budget which entails expenditure from the State treasury within a subsequent period, except with the approval of the House of Representatives.

Article (128)

The Law shall specify the rules for setting salaries, pensions, indemnities, subsidies, and bonuses which are paid from the State treasury; and shall set out the cases in which exception from such rules may be made, as well as, the authorities in charge of their application.

Article (129)

Every member of the House of Representatives may direct any question to the Prime Minister, or one of his/her deputies, or a minister, or one of his/her deputies on any matter that falls within their respective authorities; and the latter must respond to such question during the same annual session.

The member may withdraw the question at any time. A question may not be converted to an interrogation in the same session.

Article (130)

Every member of the House of Representatives may direct an interrogation to the Prime Minister, or one of his/her deputies or a minister or one of his/her deputies in order to hold them accountable for matters that fall within their respective authorities.

The House of Representatives shall discuss the interrogation at least seven (7) days after its submission, within a maximum of sixty (60) days, except in cases of urgency as determined by the House and agreed by the Government.

Article (131)

The House of Representatives may decide to withdraw confidence from the Prime Minister, or one of his/her deputies or a minister or one of his/her deputies.

Filing a motion of no confidence may not be made except after an interrogation and upon a proposal submitted by at least one-tenth of the members of the House of Representatives. The House of Representatives shall issue a decision after considering the interrogation. Withdrawal of confidence requires the affirmative vote of a majority of the House members.

In all cases, a no-confidence motion may not be filed in connection with an issue that has already been decided upon in the same annual session.

If the House of Representatives decides to withdraw confidence from the Prime Minister, or one of his/her deputies, or a minister or one of his/her deputies, with whom the Government has announced its solidarity with before voting, then that Government must resign. If the no-confidence resolution concerns a certain member of the Government, that member must resign.

Article (132)

At least 20 members of the House of Representatives may request the discussion of a public issue for the purpose of seeking a clarification on the Government's policy relating to such issue.

Article (133)

Any member of the House of Representatives may present a proposed recommendation on a public issue to the Prime Minister or one of his/her deputies, or a minister or one of his/her deputies.

Article (134)

Every member of the House of Representatives may submit an early day motion or urgent statement to the Prime Minister or one of his/her deputies, or a minister or one of his/her deputies in relation to urgent matters of public importance.

Article (135)

The House of Representatives may form a special fact-finding committee or entrust one of its existing committees with finding facts on a public matter or inspect the activities of an administrative body, public agency or public projects, for the purpose of finding facts on a specific issue, and inform the House of Representatives of the true financial, administrative or economic status, or to conduct investigations on a past activity or otherwise. The House of Representatives shall decide what it deems appropriate in this regard.

In order to carry out its mission, such a committee may collect the evidence it deems necessary and may summon individuals to give statements. All bodies shall comply with the committee's requests and place at its disposal all the documents, evidence, or anything otherwise required.

In all cases, every member of the House of Representatives is entitled to obtain any data or information from the executive power which is related to its performance of his/her duties at the House of Representatives.

Article (136)

The Prime Minister and his deputies, and the ministers and their deputies may attend the sessions of either the House of Representatives or any of its committees. Their attendance shall be obligatory if requested by the House. They may seek assistance from senior officials of their choice.

They must be heard whenever they request to speak. They must answer questions relating to issues under discussion, without having the right to vote.

Article (137)

The President of the Republic may not dissolve the House of Representatives except in cases of necessity, by a reasoned decision and following a public referendum. The House of Representatives may not be dissolved for the same reason which caused the dissolution of the previous House.

The President of the Republic shall issue a decision to suspend the sessions of the House and hold a referendum on the dissolution within no more than twenty days. If the voters agree by majority of valid votes, the President of the Republic shall issue the decision of dissolution, and call for new elections within no more than thirty days from the date of the stated decision. The new House shall convene within the ten days following the announcement of final the results.

Article (138)

Every citizen may submit written proposals to the House of Representatives regarding public issues, and may also submit complaints to the House of Representatives to be referred to the competent ministers. If the House of Representatives so requests, the Minister must provide clarifications, and the concerned person shall be informed of the result.

Chapter Two

The Executive Power

Branch I

The President of the Republic

Article (139)

The President of the Republic is the head of State and the head of executive power. He shall care for the interests of the people, safeguard the independence of the nation and the territorial integrity and safety of its lands, abide by the provisions of the Constitution, and assume his authorities as prescribed therein.

Article (140)

The President of the Republic shall be elected for a period of four calendar years, commencing from the day following the termination of the term of his predecessor. The President may only be reelected once.

The procedures for electing the President of the Republic shall be initiated at least one hundred twenty days prior to the end of the presidential term. The result must be announced at least thirty days prior to the end of such term.

The President of the Republic may not hold any partisan position throughout his presidential term.

Article (141)

A presidential candidate must be an Egyptian born to Egyptian parents, and neither he or his parents or his spouse may have held any other nationality. He must enjoy civil and political rights, must have performed the military service or have been exempted therefrom by law, and shall not be less than forty calendar years of age on the day of commencing candidacy registration. Other requirements for candidacy shall be set out by Law.

Article (142)

To be accepted as a candidate for the presidency, candidates must receive the recommendation of at least twenty elected members of the House of Representatives, or support from at least twenty five thousand citizens enjoying the right to vote, in at least fifteen governorates, with a minimum of one thousand supporter from each governorate.

In all cases, no one can support more than one candidate as regulated by Law.

Article (143)

The President of the Republic shall be elected by direct secret ballot, with an absolute majority of valid votes.

Procedures for electing the President of the Republic are regulated by Law.

Article (144)

As a condition for assuming his duties, the President of the Republic shall take the following oath before the House of Representatives: "I swear by The Almighty God to loyally uphold the republican system, respect the Constitution and the Law, fully uphold the interests of the People and to safeguard the independence of the nation and the integrity and safety of its territories."

In case of the absence of the House of Representatives, the oath shall be taken before the General Assembly of the Supreme Constitutional Court.

Article (145)

The salary of the President of the Republic shall be determined by Law. The President may not receive any other salary or remuneration. No modification to the salary may come into effect during the presidential term during which it is approved. Throughout his presidential term, the

President may not, whether in person or by proxy, be self-employed, engage in commercial, financial or industrial activity, buy, rent or lease any property owned by the state or by a public-law legal person, or a public enterprise sector company, sell or barter any part of his own property with the State, or conclude a contract with the State as a vendor, supplier, contractor or otherwise as set out by Law. Any of such acts shall be void.

The President must submit a financial estate disclosure upon taking office, upon leaving it, and at the end of each year of service. Such financial estate disclosure is to be published in the Official Gazette.

Throughout the presidential term, the President of the Republic may not award himself any orders, decorations or medals.

In case the President of the Republic receives, in person or by proxy a cash or in-kind gift because of or in connection with the presidential office, title thereto shall devolve to the State public treasury.

Article (146)

The President of the Republic shall assign a Prime Minister to form the government and introduce his/her program to the House of Representatives. If his government does not win the confidence of the majority of the members of the House of Representatives within thirty days at the most, the President shall appoint a Prime Minister who is nominated by the party or the coalition that holds the majority or the highest number of seats in the House of Representatives. If the government of such prime minister fails to win the confidence of the majority of the members of the House of Representatives within thirty days, the House shall be deemed dissolved, and the President of the Republic shall call for the election of a new House of Representatives within sixty days from the date on which the dissolution is announced.

In all cases, the total periods for choice of government set forth in this Article shall not exceed sixty days.

In case the House of Representatives is dissolved, the Prime Minister shall present to the new House of Representatives the formation of his government and its program, at its first session.

In the event the government is chosen from the party or the coalition that holds the majority or the highest number of seats in the House of Representatives, the President of the Republic shall, in consultation with the Prime Minister, choose the Ministers of Defense, Interior, Foreign Affairs and Justice.

Article (147)

The President of the Republic may relieve the government from carrying out its duties, subject to the approval of the majority of the members of the House of Representatives.

The President of the Republic may conduct a cabinet reshuffle after consultation with the Prime Minister and approval of the House of Representatives by an absolute majority of the members present , which must not be less than one third of its members.

Article (148)

The President of the Republic may delegate some of his powers to the Prime Minister, his deputies, ministers, or governors. None of them may delegate such authorities to others. All of the foregoing shall be regulated by Law.

Article (149)

The President of the Republic may call the government to convene a meeting to consult on important issues, and the President shall preside over the meetings that he attends.

Article (150)

Jointly with the Cabinet, the President of the Republic shall set the State's General Policy and oversee its implementation as stated in the Constitution.

The President of the Republic may deliver a statement on the State's General Policy before the House of Representatives at the opening of its annual regular session.

The President may deliver other statements or address other messages to the House.

Article (151)

The President of the Republic shall represent the State in its foreign relations and conclude treaties and ratify them after the approval of the House of Representatives. Such treaties shall acquire the force of law following their publication in accordance with the provisions of the Constitution.

Voters must be called for referendum on the treaties related to making peace and alliance, and those related to the rights of sovereignty. Such treaties shall only be ratified after the announcement of their approval in the referendum.

In all cases, no treaty may be concluded which is contrary to the provisions of the Constitution or which results in ceding any part of state territories.

Article (152)

The President of the Republic is the Supreme Commander of the Armed Forces. The President shall not declare war, or send the armed forces to a combat mission outside the State borders,

except after consultation with the National Defense Council and obtaining the approval of the House of Representatives by a majority of two-thirds of the members.

In case the House of Representatives has not been elected, the Supreme Council of the Armed Forces (SCAF) must be consulted and the approval of both the Cabinet and National Defense Council must be obtained.

Article (153)

The President of the Republic shall appoint and dismiss civil and military employees and political representatives and accredit political representatives of foreign States and bodies in accordance with the Law.

Article (154)

After consultation with the Cabinet, the President of the Republic may declare the state of emergency as regulated by Law. Such declaration must be presented to the House of Representatives within the following seven days to decide thereon as it deems fit.

If the declaration takes place while the House of Representatives is not in regular session, the House must be invited to convene immediately in order to consider such declaration.

In all cases, the declaration of the state of emergency must be approved by a majority of the members of the House of Representatives. The state of emergency shall be declared for a specified period not exceeding three months, which may only be extended for another similar period after obtaining the approval of two-thirds of the House members. In case the House of Representatives has not been elected, the matter shall be referred to the Cabinet for approval provided, however, that it is presented to the new House of Representatives at its first session.

The House of Representatives may not be dissolved while the state of emergency is in force.

Article (155)

After consultation with the Cabinet, the President of the Republic may issue a pardon or reduce a sentence.

General amnesty may only be granted by virtue of a law, ratified by the majority of the members of the House of Representatives.

Article (156)

In case an event which requires taking urgent measures, which cannot be delayed, occurs while the House of Representatives is not in session, the President of the Republic shall call the House for an urgent meeting to present the matter thereto. If the House of Representatives has not been elected, the President of the Republic may issue decrees having the force of law, provided that

they are then presented to, discussed and approved by the new House of Representatives within fifteen days from the commencement of its session. If such decrees are neither presented nor discussed by the House, or if they are presented but not ratified thereby, their force of law shall retroactively be revoked without need for issuing a decision to that effect, unless the House confirms its effectiveness during the previous period or decides to settle the consequences thereof.

Article (157)

Without prejudice to the provisions of the Constitution, the President of the Republic may call for a referendum on issues relating to the supreme interests of the State.

In case a call for referendum involves more than one issue, voting must be made separately on each issue.

Article (158)

The President of the Republic may submit his resignation to the House of Representatives. If the House has not been elected, he shall submit the same to the General Assembly of the Supreme Constitutional Court.

Article (159)

Accusing the President of the Republic of violating the provisions of the Constitution, treason or any other felony must be based on a motion signed by at least the majority of the members of the House of Representatives. The indictment shall only be issued by the majority of two-thirds of the members of the House of Representatives and after carrying an investigation by the Prosecutor General. In case the Prosecutor General is prevented from same, he shall be replaced by one of his assistants.

As soon as this indictment is issued, the President of the Republic shall be stopped from carrying out his duties; this is considered as a temporary impediment precluding the President from performing his competences until a verdict is issued in the case.

The President of the Republic shall be tried before a special court headed by the President of the Supreme Judicial Council with the membership of the most senior deputy of the President of the Supreme Constitutional Court, the most senior deputy of the President of the State Council, and the two most senior Presidents of the Courts of Appeal; prosecution is to be carried out before such court by the Prosecutor General. In case one of the aforementioned persons is prevented from serving, he shall be replaced by the person following him in seniority. The court verdicts shall be final and not subject to appeal.

The Law shall regulate the investigation and trial procedures. In case of conviction, the President of the Republic shall be relieved of his post without prejudice to any other penalties.

Article (160)

In case the President of the Republic is temporarily prevented from assuming his powers, the Prime Minister shall act in his place.

If the President of the Republic's office becomes vacant due to his resignation, death, or permanent inability to work, the House of Representatives shall announce the vacancy. If such vacancy is attributable to any other reason, such announcement shall be made by a majority of at least two thirds of the members of House of Representatives. The House of Representatives shall then notify the National Electoral Commission, and the Speaker of the House of Representatives shall temporarily assume the powers of the President of Republic.

In case the House of Representatives has not been elected, the General Assembly of the Supreme Constitutional Court and its Chairman shall replace the House of Representatives and its Speaker with respect to the above.

In all events, a new President must be elected within a period not exceeding ninety (90) days as of the date of vacancy. In such a case, the presidential term shall start as of the date of announcement of the election results.

The interim President may not run for presidency or request any amendment to the Constitution or dissolve the House of Representatives or dismiss the Government.

Article (161)

The House of Representatives may propose to withdraw confidence from the President of the Republic and hold early presidential elections upon filing a reasoned motion to be signed by at least the majority of the members of the House of Representatives and upon approval of two-thirds of its members. The motion may only be filed once for the same reason within the presidential term.

Upon approval of the proposal to withdraw confidence, the matter of withdrawing confidence from the President of the Republic and holding early presidential elections shall be put to public referendum to be called by the Prime Minister. If the majority approves the decision to withdraw confidence, the President of the Republic shall be relieved from his office, the office of the President of the Republic shall be deemed vacant, and early presidential elections shall be held within sixty (60) days as of the date of announcing the results of referendum. If the result of the referendum is in the negative, the House of Representatives shall be deemed dissolved, and the President of the Republic shall call for election of a new House of Representatives within thirty (30) days as of the date of dissolution.

Article (162)

If the vacancy of the presidential office coincides with the holding of a referendum or the election of the House of Representatives, the presidential elections shall be given priority. The then existing House of Representatives shall remain in place until the completion of the presidential elections.

Branch II

The Government

Article (163)

The government is the supreme executive and administrative body of the State, and consists of the Prime Minister, his/her deputies, the Ministers, and their deputies.

The Prime Minister shall head the government, oversee its work, and direct the performance of its functions.

Article (164)

The Prime Minister shall be an Egyptian citizen born to Egyptian parents and neither he/she nor his/her spouse may hold the nationality of any other country, shall enjoy civil and political rights, shall have been drafted into or legally exempted from the military service, and shall be at least thirty five (35) Gregorian years of age at the time of appointment.

Anyone appointed as a member of the government shall be an Egyptian citizen, shall enjoy all civil and political rights, shall have been drafted into or legally exempted from the military service, and shall be at least thirty (30) Gregorian years of age at the time of appointment.

It is prohibited to combine between the membership of the government and the membership of the House of Representatives. . If a member of the House of Representatives is appointed to the government, the seat thereof in the House shall become vacant as at the date of this appointment.

Article (165)

As a condition for assuming their duties, the Prime Minister and members of government shall take the following oath before the President of the Republic: “I swear by Allah, the Almighty, to loyally uphold the republican system, to respect the Constitution and the law, to fully uphold the interest of the People, and to safeguard the independence of the nation and the integrity and safety of its territories.”

Article (166)

The salary of the Prime Minister and the members of government shall be defined by Law, and they may not receive any other salary or remuneration, nor engage, throughout the term of their respective offices, whether in person or through an intermediary, in self-professions, or commercial, financial or industrial business activities. Further, they shall not buy or rent any property owned by the state or a public legal person or a public sector company, or a public enterprise sector company, nor lease or sell any of their property to, or barter the same with the State, nor conclude a contract with the State as vendors, suppliers, contractors or otherwise. Any such actions shall be deemed null and void.

The Prime Minister and the members of government shall submit a financial estate disclosure upon taking office, upon leaving the same, and at the end of each year of service. The financial estate disclosure shall be published in the Official Gazette.

If the Prime Minister or any of the members of government receive cash or in-kind gifts, because of or in relation to their posts, the ownership thereof shall transfer to the State's treasury. The foregoing shall be regulated by Law.

Article (167)

The government shall particularly exercise the following functions:

- 1- To collaborate with the President of the Republic in developing the general policy of the State, and to supervise its implementation;
- 2- To maintain the security of the nation, and to protect the rights of citizens and the interest of the State;
- 3- To direct, coordinate and follow up on the work of the ministries and their affiliated public bodies and organizations;
- 4- To prepare draft bills and decrees;
- 5- To issue administrative decrees in accordance with the law, and to follow up on their implementation;
- 6- To develop the draft for the general plan of the State;
- 7- To prepare the draft annual budget of the State;
- 8- To conclude loan contracts and to grant the same in accordance with the provisions of the Constitution;
- 9- To implement the laws.

Article (168)

Within the framework of the State's general policy, the minister shall develop the Ministry's general policy in collaboration with the competent authorities, supervise the implementation thereof and provide guidance and oversight.

Top management posts in all ministries shall include a permanent undersecretary to ensure institutional stability and raising the level of efficient implementation of its policy.

Article (169)

Any member of the government may make a statement before the House of Representatives, or one of its committees, concerning any matters falling within his/her mandate.

The House or the committee shall discuss such statement and convey its opinion regarding it.

Article (170)

The Prime Minister shall issue the necessary regulations for the execution of laws, in a manner that shall not involve any disruption of, amendment to, or exemption from their execution, and shall have the right to delegate others in issuing them, unless the law designates who shall issue the required executive regulations.

Article (171)

Upon the approval of the Council of Ministries, the Prime Minister shall issue the decrees necessary for the creation and organization of public utilities and services.

Article (172)

Upon the approval of the Council of Ministries, the Prime Minister shall issue the disciplinary regulations.

Article (173)

The Prime Minister and the members of the government shall be subject to the general rules governing investigation and trial procedures, in case that they commit crimes while or by reason of exercising the functions of their posts. The end of their term of service shall not preclude the institution or resumption of prosecution against them.

In case that the Prime Minister or any of the members of the government is accused of treason, the provisions stipulated in Article 159 herein shall apply.

Article (174)

In case of resignation of the Prime Minister, the letter of resignation shall be submitted to the President of the Republic. If a minister offers resignation, it shall be submitted to the Prime Minister.

Branch III

The Local Administration

Article (175)

The State shall be divided into administrative units that enjoy legal personality. Such units shall include governorates, cities and villages. Other administrative units that have the legal personality may be established, if public interest so requires.

When establishing or abolishing local units or amending their boundaries, the economic and social conditions shall be taken into account. All the foregoing shall be regulated by Law.

Article (176)

The state shall ensure administrative, financial, and economic decentralization. The law shall regulate the methods of empowering administrative units to provide, improve, and well manage public facilities, and shall define the timeline for transferring powers and budgets to the local administration units.

Article (177)

The State shall ensure the fulfillment of the needs of local units in terms of scientific, technical, administrative and financial assistance, and the equitable distribution of facilities, services and resources, and shall bring development levels in these units to a common standard and achieve social justice between these units, as regulated by Law.

Article (178)

Local units shall have independent financial budgets.

The resources of local units shall include, in addition to the resources allocated to them by the State, taxes and duties of a local nature, whether primary or auxiliary. The same rules and procedures for the collection of public funds by the State shall apply to collection of such taxes and duties.

The foregoing shall be regulated by law.

Article (179)

The law shall regulate the manner in which governors and heads of other local administrative units are appointed or elected, and shall determine their competences.

Article (180)

Every local unit shall elect a local council by direct and secret ballot for a term of four years. A candidate shall be at least twenty one (21) Gregorian years of age. The law shall regulate the other conditions for candidacy and procedures of election, provided that one quarter of the seats shall be allocated to youth under thirty five (35) years of age and one quarter shall be allocated for women, and that workers and farmers shall be represented by no less than 50 percent of the total number of seats, and these percentages shall include an appropriate representation of Christians and people with disability.

Local councils shall be competent to follow up the implementation of the development plan, f monitor of the different activities, exercise of oversight over the executive authorities using tools such as providing proposals, and submitting questions, briefing motions, interrogations and others, and to withdraw confidence from the heads of local units, as regulated by Law.

The law shall define the competences of other local councils, their financial sources, guarantees of their members, and the independence of such councils.

Article (181)

Local councils' resolutions that are issued within their respective mandates shall be final. They shall not be subject to the interference by the executive authority, except to prevent the council from overstepping its jurisdiction, or causing damage to the public interest or the interest of other local councils.

Any dispute pertaining to the jurisdiction of these local councils in villages, centers or towns shall be settled by the governorate-level local council. Disputes regarding the jurisdiction of governorate-level local councils shall be resolved, as a matter of urgency, by the General Assembly of the Legal Opinion and Legislation Departments of the State Council. The foregoing shall be regulated by Law.

Article (182)

Every local council shall develop its own budget and final accounts, as regulated by Law.

Article (183)

Local councils shall not be dissolved by virtue of a general administrative action.

The Law shall regulate the manner of dissolving and re-electing local councils.

Chapter Three

The Judiciary

Branch I

General Provisions

Article (184)

The Judiciary is an autonomous authority that carries out its tasks through courts of all types and degrees. Courts shall issue their rulings in accordance with the law, and the law shall define the jurisdiction of the courts. Interference in the affairs of the courts or in the lawsuits under their consideration shall constitute a crime that does not lapse by prescription.

Article (185)

Each judicial body or organization shall manage its own affairs, and shall have an independent budget, the components of which shall be fully examined by the House of Representatives. Upon its approval, this budget shall be included in the State budget under one budget line. Each judicial body or organization shall be consulted with regards to the bills regulating its affairs.

Article (186)

Judges are independent and immune to dismissal, are subject to no other authority but the law, and are equal in rights and duties. The conditions and procedures for their appointment, secondment and retirement shall be regulated by the law. The law shall further regulate their disciplinary accountability. They may not be fully or partly seconded except to the agencies determined by the law and to perform the tasks set forth therein. All the foregoing shall be in the manner that maintains the independence and impartiality of the judiciary and judges, and shall prevent conflicts of interest. The rights, duties and guarantees granted to them shall be specified by Law.

Article (187)

Court sessions shall be public, unless the court decides on its secrecy to safeguard public order or public morals. In all cases, court judgments shall be pronounced in publicly held sessions.

Branch II

The Judiciary & The Prosecution

Article (188)

The judiciary shall decide on all disputes and crimes, except those falling within the jurisdiction of other judicial bodies. It shall solely have the jurisdiction to settle disputes relating to its own

members. The affairs of the judiciary shall be managed by a Supreme Council, the structure and jurisdiction of which shall be regulated by Law.

Article (189)

The Public Prosecution is an integral part of the judiciary. It shall carry out the investigation and prosecution of criminal cases, except those excepted by the law. The law shall determine its other jurisdictions.

The Prosecutor General shall be in charge of the Public Prosecution. He shall be chosen by the Supreme Council of the Judiciary from among those ranked as Vice presidents of the Court of Cassation, or from those ranked as Presidents of the Courts of Appeal or from the Assistants to the Prosecutor General. He shall be appointed by virtue of a Presidential Decree for four years or for the remaining years until he reaches the age of retirement whichever is earlier, and this appointment shall be only once during his term of service.

Branch III

The State Council

Article (190)

The State Council is an autonomous judicial body, and it shall have the exclusive jurisdiction to settle administrative disputes and disputes relevant to the execution of all its rulings. It shall have jurisdiction over disciplinary suits and appeals, and the exclusive jurisdiction to provide advice regarding legal issues to the administrative bodies determined by the law. It shall also review and draft bills and decrees of legislative nature, and shall review draft contracts to which the state or any other public authority is a party. The law shall determine its other jurisdictions.

Chapter Four

The Supreme Constitutional Court

Article (191)

The Supreme Constitutional Court is an autonomous and independent judicial body having its headquarters in Cairo. However, in cases of emergency it may, upon the approval of its General Assembly, hold its sessions elsewhere in Egypt. It shall have an independent budget, which shall be fully examined by the House of Representatives. Upon its approval, this budget shall be included in the State budget under one budget line. The General Assembly of the court shall manage its affairs and it shall be consulted regarding bills relevant to its affairs.

Article (192)

The Supreme Constitutional Court shall be solely competent to decide on the constitutionality of laws and regulations, to interpret legislative provisions, and to adjudicate on disputes pertaining to the affairs of its members, on jurisdictional disputes between judicial bodies and entities that have judicial jurisdiction, on disputes pertaining to the implementation of two final contradictory judgments, one of which is rendered by a judicial body or an authority with judicial jurisdiction and the other is rendered by another , and on disputes pertaining to the execution of its judgments and decisions.

The law shall determine the Court's other competences and regulate the procedures that are to be followed before the Court.

Article (193)

The Court shall be composed of a President and a sufficient number of deputies to the President.

The Commissioners of the Supreme Constitutional Court shall have a President and a sufficient number of Commission presidents, advisors and assistant advisors.

The General Assembly of the Court shall elect its President from among the most senior three vice-presidents of the Court. It shall further choose the vice-presidents and the members of its Commissioners, and the appointment thereof shall be made by virtue of a decree by the President of the Republic. The foregoing shall be regulated by Law.

Article (194)

The President and the vice-presidents of the Supreme Constitutional Court, and the President and members of its Commissioners are independent and immune to dismissal, and are subject to no other authority but the law. The law shall set out the conditions they must meet. The Court shall be responsible for their disciplinary accountability, as stated by the law. All rights, duties and guarantees granted to other members of the judiciary shall apply to them.

Article (195)

The judgments and decisions issued by the Supreme Constitutional Court shall be published in the Official Gazette, and they shall be binding upon everyone and all of the State authorities. They shall have *Res judicata* vis-à-vis all of them.

The law shall regulate the consequences of a judgment rendering a text of law unconstitutional.

Chapter Five

Judicial Organizations

Article (196)

The State Lawsuits Authority is an independent judicial organization. It undertakes the legal representation of the State in lawsuits filed by or against the State, and of proposing amicable settlement of disputes at any stage of litigation. It shall further have technical oversight on the departments of legal affairs of the State administrative bodies with regard to cases handled thereby. It shall draft contracts referred thereto by administrative bodies and to which the State is party. The foregoing shall be regulated by Law.

Other competences of the Organization shall be defined by the law. Its members shall have all of the guarantees, rights and duties assigned to other members of the Judiciary. Their disciplinary accountability shall be regulated by the law.

Article (197)

The Administrative Prosecution is an independent judicial organization. It undertakes investigations into financial and administrative violations, and also those referred to it. Regarding these violations, the Administrative Prosecution shall have the authorities of the administrative body to impose disciplinary penalties. Challenges against the decision of the Prosecution shall be filed before the competent disciplinary court at the State Council. It shall further initiate actions, appeals, and disciplinary proceedings before the State Council courts. All the foregoing shall be regulated by Law.

Other competences of the Administrative Prosecution shall be defined by law. All guarantees, rights and duties assigned to other members of the Judiciary shall apply to its members. Their disciplinary accountability shall be regulated by the law.

Chapter Six

The Legal Profession

Article (198)

The legal profession is a free profession which participates with the Judicial Authority in the establishment of justice and the rule of law, and ensures the right to defense. It shall be practiced by independent attorneys, and attorneys of public authorities, public sector companies and public enterprise sector companies. All attorneys shall have, while performing their duties to uphold the right to defense before the courts, the guarantees and protection granted to them by the law. Such rights shall also be granted to them before investigation and inquiry authorities. Except in cases of *flagrante delicto*, the arrest or detention of attorneys while exercising their right to defense shall be prohibited. The foregoing shall be determined by the law.

Chapter Seven

Experts

Article (199)

Judicial experts, forensic medicine experts, and notary public's technical staff undertake their duties independently, and shall have the guarantees and protection required for them to perform their tasks, as regulated by the Law.

Chapter Eight

The Armed Forces & The Police

Branch I

The Armed Forces

Article (200)

The Armed Forces belong to the People, and their duty is to protect the country, and preserve its security and the integrity of its territories. Only the State shall be entitled to establish the Armed Forces. No individual, organization, entity, or group shall be allowed to create military or quasi-military squadrons, groups or organizations.

The Armed Forces shall have a supreme council, as regulated by Law.

Article (201)

The Minister of Defense is the Commander in Chief of the Armed Forces, and shall be appointed from among its officers.

Article (202)

The Law regulates the military mass mobilization, and determines the conditions of the military service, promotion and retirement in the Armed Forces.

The judicial committees for officers and personnel of the Armed Forces shall be solely competent to adjudicate on all administrative disputes pertaining to decisions affecting them. The Law regulates the rules and procedures for challenging the decisions made by these committees.

Branch II

National Defense Council

Article (203)

National Defense Council shall be chaired by the President of the Republic and comprise the membership of the Prime Minister, the Speaker of the House of Representatives, the Minister of Defense, the Minister of Foreign Affairs, the Minister of Finance and the Minister of Interior, the Chief of the General Intelligence Service, the Chief of Staff of the Armed Forces as well as the Commanders of the Navy, the Air Forces and Air Defense, the Chief of Operations of the Armed Forces, and the Head of Military Intelligence.

The Council shall be competent to examine the matters pertaining to preserving the security and integrity of the country, and to discuss the budget of the Armed Forces, which shall be included in the State budget under one budget line. The opinion of the Council shall be obtained on the bills concerning the Armed Forces.

Other competences of the Council shall be specified by Law.

Upon discussing the budget, the Head of the Financial Affairs Department of the Armed Forces and the heads of the Planning and Budgeting Committee and the National Security Committee at the House of Representatives shall join the Council.

The President of the Republic may invite any person having relevant expertise to attend the Council's meetings without having the right to vote.

Branch III

Military Courts

Article (204)

The Military Court is an independent judicial body exclusively competent to adjudicate on all crimes pertaining to the Armed Forces, the officers and personnel thereof, and their equivalents, and on the crimes committed by the personnel of the General Intelligence while and by reason of performing their duties.

No civilian shall face trial before the Military Court, except for crimes that constitute a direct assault against military facilities or camps of the Armed Forces, or their equivalents, against military zones or border zones determined as military zones, against the Armed Forces' equipment, vehicles, weapons, ammunition, documents, military secrets, or its public funds, or against military factories; crimes pertaining to military service; or crimes that constitute a direct assault against the officers or personnel of the Armed Forces by reason of performing their duties.

The law shall define such crimes, and specify the other competences of the Military Court.

Members of the Military Court shall be independent and shall be immune to dismissal. They shall have all the guarantees, rights and duties stipulated for the members of other judicial bodies.

Branch IV

National Security Council

Article (205)

The National Security Council shall be chaired by the President of the Republic, and comprise the membership of the Prime Minister, the Speaker of the House of Representatives, the Minister of Defense, the Minister of Interior, the Minister of Foreign Affairs, the Minister of Finance, the Minister of Justice, the Minister of Health, the Minister of Communication and the Minister of Education, the Chief of the General Intelligence Service, and the Head of the Committee of Defense and National Security at the House of Representatives.

The Council shall be responsible for adopting strategies for establishing the security of the country and facing disasters and crises of all kinds, shall take the necessary measures to contain them, to identify sources of threat to the Egyptian national security, inside the country or abroad, and to undertake the necessary actions to address them at both official and popular levels.

The Council may invite any person having relevant expertise to attend its meetings without having the right to vote.

The law shall determine the other competences of the Council and its regulations.

Branch V

The Police

Article (206)

The police force is a statutory civil body that is dedicated to the service of the People and its loyalty shall be to the People. It shall ensure safety and security of the citizens, preserve public order and morality. It shall comply with the duties set out in the Constitution and the law, and shall respect human rights and fundamental freedoms. The State shall guarantee that the staff of the Police force perform their duties, and the relevant guarantees shall be regulated by Law.

Article (207)

A supreme police council shall be formed from among the most senior officers of the police force and the Head of the Legal Opinion Department at the State Council. The Council shall be competent to assist the Minister of Interior in the organization of the Police force and management of the affairs of its staff members. The other competences of the Council shall be determined by Law. The Council shall be consulted in connection with any laws pertaining to the police force.

Chapter Nine

National Elections Commission

Article (208)

The National Elections Commission is an independent authority and shall be solely competent to administer referenda and elections of the president, the parliament and the local councils. Such administration shall include the development and updating of a database for voters, proposing the division of constituencies, determination of controls for promotion and funding of electoral campaigns, as well as electoral expenditure, the disclosure of such expenditure, the supervision of such controls, the facilitation of the procedures for out-of-country voting by expatriate Egyptians, and other procedures till the announcements of the results.

The foregoing shall be regulated by law.

Article (209)

The National Elections Commission shall be administered by a board composed of 10 members to be equally assigned on full time basis from among those ranked as Vice-presidents of the Court of Cassation, those ranked as Presidents of the Courts of Appeal, Vice-presidents of the State Council, the State Lawsuits Organization and the Administrative Prosecution. They shall be selected by the Supreme Judicial Council and special councils of the aforementioned judicial bodies and organizations, as the case may be, provided that they are not members thereof. They shall be appointed by virtue of a decree by the President of the Republic. They shall be assigned to work on a full time basis at the Commission for one term of six years. The Commission shall be chaired by the most senior judge at the Court of Cassation.

Half of the members of the Council shall be replaced every three years.

The Commission may seek the assistance of independent public figures, specialists, and those deemed to have relevant expertise in the field of elections. They shall not have the right to vote.

The Commission shall have a permanent executive body. The law shall determine the composition and constitution of such executive body, and the rights, duties and guarantees of its members in a way that achieves their neutrality, independence and integrity.

Article (210)

Voting and counting of votes in referenda and elections shall be administered by members of the Commission under the overall supervision of its Board. It may seek the help of members of judicial organizations.

The voting and counting of votes in elections and referenda which take place during the 10 years following the effective date of this Constitution shall be totally overseen by members of judicial bodies and organizations according to the Law.

The High Administrative Court shall be competent to adjudicate on challenges filed against the Commission's decisions pertaining to referenda, presidential and parliamentary elections, and the results thereof. Challenges against elections of local councils shall be filed before the Administrative Courts. Dates to file challenges against these decisions shall be specified by law, provided that challenges shall be finally decided within ten days from the date of recording the challenge.

Chapter Ten

Supreme Council for the Regulation of Media

Article (211)

The Supreme Council for the Regulation of Media is an independent entity that has a legal personality, and enjoys technical, financial and administrative independence, and has an independent budget.

The Council shall be competent to regulate the affairs of audio and visual media and regulate the printed and digital press, and other media means.

The Council shall bear the responsibility for guaranteeing and protecting the freedom of press and media as stipulated in the Constitution, safeguarding its independence, neutrality, plurality and diversity, preventing monopolistic practices, monitoring the legality of the sources of funding of press and media institutions and developing the controls and criteria necessary to ensure compliance by the press and media outlets with the professional and ethical standards, and national security needs as stated in the Law.

The law shall determine the composition and regulations of the Council, and the employment conditions for its staff.

The Council shall be consulted with respect to the bills and regulations related to its scope of competence..

Article (212)

The National Press Organization is an independent organization that shall manage and develop state-owned press institutions and their assets, as well as ensure their modernization, independence, neutrality and their adherence to good professional, administrative and economic standards.

The law shall determine the composition and regulations of the Organization, and the employment conditions for its staff.

It shall be consulted with respect to the bills and regulations pertaining to its scope of work. .

Article (213)

The National Media Organization is an independent organization that shall manage and develop state-owned visual, audio and digital media outlets and their assets, as well as ensure their development, independence, neutrality and their adherence to good professional, administrative and economic standards.

The law shall determine the composition and regulations of the Organization and the employment conditions for its staff.

It shall be consulted with respect to the bills and regulations pertaining to its scope of work. .

Chapter Eleven

National Councils, Autonomous Organizations & Control Agencies

Branch I

National Councils

Article (214)

The law shall specify the independent national councils, including the National Council for Human Rights, the National Council for Women, the National Council for Childhood and Motherhood, and the National Council for Disabled Persons. The law shall state the composition, mandates, and guarantees for the independence and neutrality of their respective members. Each council shall have the right to report to the competent authorities any violations pertaining to their fields of work.

These councils shall have legal personalities and shall be technically, financially, and administratively independent. They shall be consulted with respect to the bills and regulations pertaining to their affairs and fields of work.

Branch II

Autonomous Organizations and Control Agencies

Article (215)

Autonomous Organizations and control agencies shall be specified by Law. These organizations and agencies shall have legal personality, and shall be technically, financially and administratively independent. They shall be consulted with respect to the bills and regulations that relate to their fields of work. These bodies and agencies shall include the Central Bank, the Egyptian Financial Supervisory Authority (EFSA), the Central Auditing Organization (CAO), and the Administrative Control Authority.

Article (216)

The formation of each individual autonomous organization or regulatory agency shall be enacted by a law defining its competences and regulations, and stipulating guarantees for its independence, the necessary protection for its members, and their employment conditions in a way that ensures their neutrality and independence.

The President of the Republic shall appoint the heads of such organizations and regulatory agencies, upon the approval of the House of Representatives by a majority of its members, for a one-time renewable term of four years. They shall not be dismissed, except in the cases stated in the law. The same prohibitions applicable to the Ministers shall apply to these heads.

Article (217)

Autonomous organizations and control agencies shall submit annual reports to the President of the Republic, the House of Representatives and the Prime Minister, immediately after their issuance.

The House of Representatives shall examine such reports and take the appropriate action within a period not exceeding four months from the date of receipt. The reports shall be made available to the public.

Autonomous organizations and control agencies shall notify the competent investigation authorities of any evidence discovered in relation to violations or crimes. They shall take the necessary measures with regards to these reports within a specified period of time. The foregoing shall be regulated by Law.

Article (218)

The State shall fight corruption, and the competent control agencies and organizations shall be identified by Law.

Competent control agencies and organizations shall coordinate their activities in combating corruption, enhancing the values of integrity and transparency in order to ensure the sound performance of public functions and preserve public funds, and shall develop and follow up execution of a national strategy to combat corruption in collaboration with other competent agencies and organizations, as regulated by Law.

Article (219)

The Central Auditing Organization shall be responsible for monitoring the funds of the State, the funds of the State public and independent legal persons and other authorities as specified by Law; s well as being responsible for monitoring the implementation of the State budget and independent budgets and for auditing its final accounts.

Article (220)

The Central Bank shall be responsible for developing and overseeing the implementation of monetary, credit, and banking polices, and for monitoring the performance of banks. It is solely entitled to issue banknotes. It shall maintain the integrity of the monetary and banking system, and the stability of prices within the framework of the State general economic policy, as regulated by Law.

Article (221)

The Egyptian Financial Supervisory Authority (EFSA) shall be responsible for monitoring and supervising financial non-banking markets and instruments including capital markets, futures exchanges, insurance activities, mortgage finance, financial leasing, and factoring and securitization, as regulated by Law.

Part VI

General & Transitional Provisions

Chapter One

General Provisions

Article (222)

The city of Cairo is the capital of the Arab Republic of Egypt.

Article (223)

The national flag of the Arab Republic of Egypt consists of three colors; black, white, and red with an eagle taken from the “Eagle of Salah El Din” in golden yellow. The emblem, decorations, insignia, seal and the national anthem shall be determined by Law.

Desecration of the Egyptian flag shall be a crime punishable under the law.

Article (224)

All the provisions stipulated by laws and regulations prior to the promulgation of this Constitution shall remain in force, and they may neither be amended nor repealed except in accordance with the regulations and procedures prescribed herein.

The state shall be obliged to issue laws executing the provisions of this Constitution.

Article (225)

Laws shall be published in the Official Gazette within 15 days from the date of their issuance, to be effective after 30 days from the day following the date of publication, unless the law specifies a different date.

Provisions of the laws shall only apply from the date of their entry into force. However, in articles pertaining to non-criminal and non-tax-related matters, the contrary may be provided for in the law, upon approval by a majority of two thirds of the members of House of Representatives.

Article (226)

The amendment of one or more articles of the Constitution may be requested by the President of the Republic or one-fifth of the members of the House of Representatives. The request shall specify the articles requested to be amended and the reasons for such amendment.

In all cases, the House of Representatives shall discuss the amendment request within 30 days from the date of its receipt. The House shall issue its decision to accept the request in whole or in part by a majority of its members.

If the request is rejected, the same articles may not be requested to be amended again before the next legislative term.

If the amendment request is approved by the House, it shall discuss the text of the articles requested to be amended within 60 days from the date of approval. If approved by a two-thirds majority of the House's members, the amendment shall be put to a public referendum within 30 days from the date the approval is issued. The amendment shall be effective from the date on which the referendum's result and the approval of a valid majority of the participants in the referendum are announced.

In all cases, texts pertaining to the re-election of President of the Republic or the principles of freedom or equality stipulated in this Constitution may not be amended, unless the amendment brings more guarantees.

Article (227)

The Constitution and its preamble and all its provisions constitute an integral text and an indivisible whole, and its provisions constitute one coherent unit.

Chapter Two

Transitional Provisions

Article (228)

The High Electoral Committee and the Presidential Election Committee existing at the time this Constitution comes into force shall undertake the full supervision of the first parliamentary and presidential elections following the effective date of the Constitution. The funds of the two committees shall be transferred to the National Electoral Commission, immediately upon its formation.

Article (229)

The elections of the House of Representatives following the date on which this Constitution comes into effect shall take place in accordance with the provisions of Article 102 hereof.

Article (230)

Election of the President of the Republic or the House of Representatives shall take place as regulated by Law, provided that the first of either elections shall take place within a period not

less than 30 days and not more than 90 days after the date on which this Constitution comes into effect.

In all cases, the following electoral procedures shall commence within a period not exceeding six months as of the date on which the Constitution comes into effect.

Article (231)

The presidential term following the effective date of this Constitution shall commence as of the date on which the final result of the election is announced.

Article (232)

The Interim President of the Republic shall continue to exercise presidential powers stipulated herein until the elected President of the Republic takes the constitutional oath.

Article (233)

If the Interim President of the Republic is rendered unable to exercise his powers by reason of a temporary impediment, the Prime Minister shall replace him.

If the Interim Presidential office becomes vacant due to resignation, death, permanent disability or any other reason, the most senior Vice-President of the Supreme Constitutional Court shall replace him with the same powers.

Article (234)

The Minister of Defense shall be appointed upon the approval of the Supreme Council of the Armed Forces. The provisions of this article shall remain in force for two full presidential terms starting from the date on which this Constitution comes into effect.

Article (235)

In its first legislative term following the effective date of this Constitution, the House of Representatives shall issue a law to regulate constructing and renovating churches, in a manner that guarantees the freedom to practice religious rituals for Christians.

Article (236)

The State shall guarantee setting and implementing a plan for the comprehensive economic and urban development of border and underprivileged areas, including Upper Egypt, Sinai, Matrouh, and Nubia. This shall be made with the participation of the residents of these areas in the development projects, and they shall be given a priority in benefiting therefrom, taking into account the cultural and environmental patterns of the local community, within ten years from the date that this Constitution comes into effect, as regulated by Law.

The State shall work on setting and implementing projects to bring back the residents of Nubia to their original territories and develop such territories within 10 years, as regulated by law.

Article (237)

The State shall fight all types and forms of terrorism, and track its funding sources as a threat to the nation and its citizens, within a specific timeframe while guaranteeing basic rights and freedoms. .

The law shall regulate the provisions and procedures of fighting terrorism, and fair compensation for the damages resulting therefrom and because thereof.

Article (238)

The State guarantees gradual performance of its obligation to allocate the minimum government expenditure rates on education, higher education, health and scientific research that are stipulated in this Constitution as at the date on which it enters into effect, provided it is fully compliant in the State budget of the fiscal year 2016/2017.

The State shall provide compulsory education until the completion of the secondary stage in a gradual manner to be completed by school year 2016/2017.

Article (239)

The House of Representatives shall issue a law organizing the rules for assigning judges and members of judicial bodies and organizations, ensuring the cancellation of full and partial assignment to non-judicial bodies or committees with judicial jurisdiction, or for managing justice affairs or overseeing elections, within a period not exceeding five years from the date on which this Constitution comes into effect.

Article (240)

The State shall ensure providing financial and human resources necessary to appealing the judgments issued by criminal courts on felonies within 10 years from the date on which this Constitution comes into effect. The foregoing shall be regulated by Law.

Article (241)

In its first legislative term after the enforcement of this Constitution, the House of Representatives shall issue a law on transitional justice that ensures revealing the truth, accountability, proposing frameworks for national reconciliation, and compensating victims, in accordance with international standards.

Article (242)

The existing system of municipal administration shall continue to be in force until the system stipulated herein is gradually implemented within five years of the date of entry into force of this Constitution, without prejudice to Article 180 thereof.

Article (243)

The State shall endeavor that workers and farmers be appropriately represented in the first House of Representatives to be elected after this Constitution is approved, as regulated by law.

Article (244)

The State shall endeavor that youth, Christians, persons with disability and Egyptians living abroad be appropriately represented in the first House of Representatives to be elected after this Constitution is approved, as regulated by law.

Article (245)

The employees of the Shoura Council who are still in service on the date that this Constitution comes into force shall be transferred to the House of Representatives with the same job levels and seniority on that date. Their salaries, allowances, bonuses, and their other financial entitlements granted to them on an individual basis shall be maintained. All funds of the Shoura Council shall be transferred to the House of Representatives.

Article (246)

The Constitutional Declaration issued on July 5th, 2013, the Constitutional Declaration issued on July 8th, 2013, and any constitutional texts or provisions of the Constitution issued in 2012 but not covered by this constitutional document shall be deemed repealed as of the date that this Constitution comes into effect. Their consequential effects shall however remain in force.

Article (247)

This Constitution shall come into effect as at the date on which it is announced that the People have approved it in a referendum through a majority of valid votes of the participants.

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